

**HIGH COURT OF TRIPURA  
AGARTALA**

**Crl. A(J) 43 of 2023**

Shri Ananta Das

**.....Appellant(s)**

***Versus***

State of Tripura

**.....Respondent(s)**

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For the Appellant(s) : Mr. D. Sarkar, Advocate.

For the Respondent(s) : Mr. Raju Datta, PP

Date of hearing & delivery  
of judgment & order : 07.01.2025.

Whether fit for reporting : Yes/No

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**HON'BLE MR. JUSTICE T. AMARNATH GOUD  
HON'BLE MR. JUSTICE BISWAJIT PALIT  
J U D G M E N T & O R D E R(ORAL)**

[T. Amarnath Goud, JJ]

Heard Mr. D. Sarkar, learned Legal Aid counsel for the appellant. Also heard Mr. R. Datta, learned PP appearing for the State-respondent.

**[2]** This present appeal is filed under Section 378 of Cr.P.C challenging the judgment and order of conviction & sentences dated 04.11.2022 passed by the learned Sessions Judge, Unakoti Judicial District, Kailashahar in case no. Sessions Trial 26 (U/K) of 2021 (T-

I) whereby the convict Ananta Das has been sentenced for commission of offence punishable under Section 302 of IPC to suffer rigorous imprisonment for life and also to pay a fine of Rs. 10,000/- (rupees ten thousand) only with default stipulations.

**[3]** The brief facts of this case are that a written ejahar was submitted by the complainant Sri Abhijit Das, who is the son of the accused that on 08.03.2021 at about 10:45 hours accused Ananta Das committed the murder of his wife Nirupama Das by hitting her with an axe in front of the kitchen veranda of their house and she was declared dead in the hospital. On the basis of this written ejahar, a case being FTK PS Case No. 009/2021 under Section 302 of IPC was registered against the accused person namely Sri Ananta Das and the case was endorsed to an SI for investigation. On completion of investigation, IO submitted charge sheet vide No 14/2021 under Sections 302/354A(1)(ii) of IPC dated 27.04.2021 against the accused person namely Sri Ananta Das to face trial.

**[4]** On 29.07.2021, cognizance of offence was taken by learned CJM, Unakoti, Kailashahar under Sections 302/354A(1)(i) of IPC against the accused Sri Ananta Das and on 20.08.2021, the Court of learned Sessions Judge, Unakoti Judicial District, Kailashahar received the case record on commitment. The engaged Counsel of the accused person filed bail petition which was rejected

by the learned Court below having regard to the nature and gravity of the offences. On 02.09.2021, accused Ananta Das was produced before the Court from JC and Charge U/S 302 of IPC was framed against the accused by the then Learned Sessions Judge, Unakoti, Kailashahar and the trial began accordingly. To prove the case, prosecution has examined as many as 16(sixteen) witnesses but, the defence did not adduce any evidence.

**[5]** Thereafter, learned Court below on 04.11.2022 sentenced the accused person, appellant herein in the following manner:

".....O R D E R

14. Hence, in the result, I do hereby sentence the convict Ananta Das for commission of offence punishable U/S 302 of IPC to suffer rigorous imprisonment for life and also to pay a fine of Rs. 10,000/- (rupees ten thousand)only, i.d., to undergo further rigorous imprisonment for 03(three) months,

The fine money, if realized, shall be paid to the family members of the convict.

The period of detention undergone by the convict during the period of investigation and trial will be set off from the period of imprisonment.

The case stands disposed of accordingly on contest....."

Aggrieved by the above sentence passed by the learned Court below, the appellant side has preferred this present appeal.

**[6]** Mr. D. Sarkar, learned Legal Aid counsel appearing for the appellant submits that the convict-appellant Ananta Das was mentally unsound and he had no intention to commit the offence.

He further submits that the learned Court below has failed to appreciate the fact that the accused was mentally not sound and he was suffering from insanity. He, therefore, urges this Court to set aside the impugned order dated 04.11.2022 passed by the Court below.

**[7]** *Per contra*, Mr. R. Datta, learned PP appearing for the State opposes the submission made by the learned Legal Aid counsel on behalf of the appellant. He, submits that learned Court below upon hearing both the sides and on perusal of prosecution witnesses has convicted the appellant by the impugned order dated 04.11.2022 and the same should not be interfered with.

**[8]** Heard the submissions made at the Bar. Perused the record.

**[9]** PW 1, who is the complainant of this case and son of the deceased and the accused, deposed that on 08.03.2021 i.e. on the date of the incident the complainant's mother, was sitting on a bench in the verandah after having cooked food. The accused of this case at that time was shouting in a loud voice. He was accusing them of feeding him poison. He (accused) also stated that he would no longer share meal with them. The deceased of this case i.e. the complainant's mother requested the accused to take tea and food

which he refused. In spite of that the accused kept on shouting and thereafter went into his room and came out with an axe. He gave two blows with the sharp edge of the axe on the head of his mother. One blow was to the front and another in the back. She fell and was bleeding profusely. Then the accused attacked his sister Papi. He and his sister went inside a room and bolted the door. His father i.e. the accused Ananta Das landed 15/16 blows of the axe on the door. He also broke the window and entered the room. They escaped to another room where also he entered through the window. He fled in one direction and his sister fled to the kitchen. There his father landed one blow on her shoulder. The Complainant's sister fled to the house of the neighbours who ultimately restrained the accused. As per the information given by the local villagers Police was informed and they came and detained the accused. It was also deposed by PW 1 that when they took their mother to the hospital she was declared "brought dead". Thereafter, he lodged the FIR in the PS. PW 1 identified the FIR which was marked as Exbt P 1. He also identified his signature in the inquest report of his mother which was marked Exbt P 2. He also identified the axe in the Court below which was used to murder his mother. He also stated that the said axe was seized by Police from their house. He also identified his father in the Court below.

In cross-examination, he stated that there was no financial or other family dispute. The accused was also not taking meal for 3/4 days prior to the incident. It was also stated that there was no altercation between PW 1 and their father prior to the incident. He denied that his father lost mental composure which they could not recognize or treat.

**[10]** The prosecution witness no. 2 (PW 2) is the sister of the complainant and daughter of the deceased and the accused. She fully corroborated the evidence of the complainant (P.W. 1). She deposed that on 08.03.2021, when her mother was sitting in the verandah of the kitchen after having cooked food, she was in the kitchen. She stated that the accused was shouting in loud voice and was accusing them of feeding him poison. He also said that he would no longer share meal with them. Her mother requested him to take tea and food which he refused. She further corroborated the evidence of PW 1 that his father landed two blows with the sharp edge of the axe on the head of his mother. One blow was to the front and another in the back. She fell and was bleeding profusely. She further corroborated the evidence of the complainant that his father then attacked her in the kitchen. One edge of the axe struck her hand and she got bleeding injury. She stated that she and her

brother went inside a room and bolted the door. Her father landed 15/16 blows of the axe on the door. He also broke the window and entered the room. They escaped to another room where also he entered through the window. She also corroborated the evidence of the complainant that her brother fled in one direction and pushed her to the kitchen. Her father followed and landed blows on kitchen door. She also corroborated the evidence of the complainant that she fled to the house of the neighbours and when she came out of the neighbours home her mother was being taken to the hospital. Thereafter, they took their mother to the hospital where she was declared "brought dead". She identified her father in Court. PW 2 also identified the axe and some hair from the said axe in her presence and she signed on the seizure list which on her identification was marked as Exbt MO 1. She also identified her signature in the seizure list relating to seizure of axe with some hair was marked Exbt P 3. She also identified her signature in the statement recorded U/S 164(5) of the CrPC which was marked Exbt P4.

In her cross-examination she denied the fact that her father lost his mental composure 6/7 days prior to the incident which they could not recognize or treat.

**[11]** P.W. 3, who is the neighbour of P.W.s 1, 2 and their accused father deposed that about 10 months ago at about 10:45 pm hearing the hue & cry towards the house of Ananta Das (accused) when he came outside his house and came to the courtyard, he saw Papi Das(P.W. 2) was running towards his house and they put the said Papi Das inside their house. The accused Ananta Das was also running behind said Papi Das with one axe in his hand. Then said Ananta Das could not understand that they have kept his daughter inside their house. He, thereafter, came on the backside of his house and he along with his grandfather, Upendra Das managed to take the axe from the hand of the accused and kept the same on his veranda. He further deposed that on inquiry from Papi Das, he learnt that her father Ananta Das had killed her mother Nirupama Das by the said axe. He further corroborated the evidence of PW 1 that getting the news from Papi Das they rushed towards the house of Ananta Das and reaching there saw the said Nirupama Das lying in the pool of blood in the veranda of the kitchen having blood all over the veranda and he along with Abhijit Das (P.W.1) took Nirupama Das to Fatikroy PHC and reaching there, Doctor stated that she was dead. The witness also identified the said axe with some hair which was already marked as Exbt MO 1. He also identified his signature in the seizure

list relating to seizure of said axe which on identification was marked Exbt P 1. He also identified the accused in the jail through Video Conferencing.

In his cross-examination he denied the fact that Ananta Das was mentally ill. Defence side failed to bring anything in the cross-examination of the prosecution witnesses so as to disbelieve them.

**[12]** For better appreciation of the facts, the relevant contents of the statement of the accused person's daughter who is also the eye-witness of the alleged incident recorded by the Judicial Magistrate (1<sup>st</sup> Class), Kailashahar under Section 164(5) of Cr.PC are quoted hereunder:

*".....Thereafter my brother and me & some other villagers took my mother to Fatikroy hospital. She my mother was declared dead on reaching the hospital. My mother died on the spot. My father use to suspect me and my mother whenever we go to sell clothes. He use to suspect that me and my mother use to go for prostitution to earn money. My father is such a negative minded person. My mother use to earn for us by selling clothes and my brother got a job recently only. My father use to do many bad things with me earlier while we i.e. me my mother & father use to stay in one house. At night my father will wake up slowly and touch my private parts (breast) at night and I use to immediately*

*inform my mother about the same. If my father is enlarged from jail now he will surely kill me and my brother & our life will be at risk.....”*

**[13]** It is observed that a voluntary disclosure statement was recorded by PW 7, Executive Magistrate, O/o the SDM, Kumarghat, Unakoti District, Tripura on 08.03.2021 wherein, the accused person disclosed that he had hit on the head of his wife with the axe. The post-mortem report dated 08.03.2021 also indicates that the death of the deceased was caused by *“the two cut injuries over the left side of the Head which is Homicidal in Nature”*.

**[14]** In view of the above discussions, we are of the opinion that the plea of the appellant-side that he is mentally unsound is not acceptable since all the evidences on record are against him. No prayer was ever made from the side of the accused for referring him before the Medical Board for checking his mental health and none of the prosecution witnesses supported that the accused was mentally unsound at the time of commission of crime or he was suffering from insanity before committing the crime. The daughter of the accused in her statement recorded under Section 164(5) of Cr.PC categorically stated that her father used to do many wrong things viz. spoiling her modesty while she, her mother and her

accused-father stayed in one room and in the event, if he would be released from jail, he would definitely kill her and her brother.

**[15]** View from any angle the case against the accused appellant is proved beyond reasonable doubt on the strength of the victim daughter who is an eye witness along with the complainant son both being children of the accused and deceased.

Thus, the order of the trial Court has no infirmities and needs no interference. The charges against the accused appellant U/S 302 & 354A of IPC stands proved and holding him guilty, the conviction and sentence dated 04.11.2022 passed by the learned Court below stands confirmed.

In view of the above, the instant appeal is dismissed. As a sequel, miscellaneous application(s), pending if any, shall also stand closed.

**B. PALIT, J**

**T. AMARNATH GOUD, J**

*Sabyasachi G.*

**SABYASACHI  
GHOSH**

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